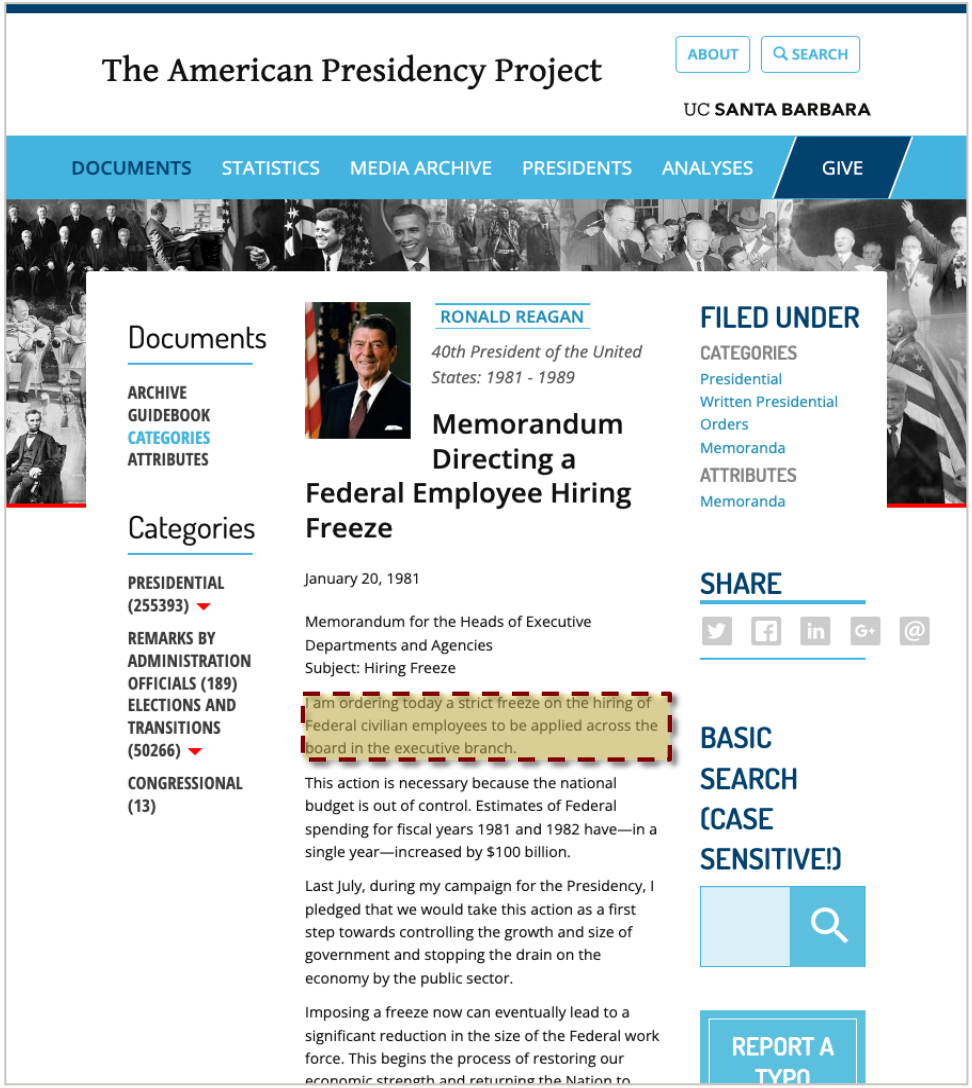
Federal hiring freeze: Reagan memorandum (1981)

An immediate freeze stated without a conventional vesting formula



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RONALD REAGAN

40th President of the United States: 1981 - 1989

Memorandum Directing a Federal Employee Hiring Freeze

January 20, 1981

Memorandum for the Heads of Executive Departments and Agencies
Subject: Hiring Freeze

I am ordering today a strict freeze on the hiring of Federal civilian employees to be applied across the board in the executive branch.

This action is necessary because the national budget is out of control. Estimates of Federal spending for fiscal years 1981 and 1982 have—in a single year—increased by $100 billion.

Last July, during my campaign for the Presidency, I pledged that we would take this action as a first step towards controlling the growth and size of government and stopping the drain on the economy by the public sector.

Imposing a freeze now can eventually lead to a significant reduction in the size of the Federal work force. This begins the process of restoring our economic strength and returning the Nation to

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REPORT A TYPO

NO EXPRESS VESTING CLAUSE

"I am ordering today a strict freeze on the hiring of Federal civilian employees to be applied across the board in the executive branch."

HOW CLOSE IS THE ANALOGY?

The opening is operative text—not an 'authority vested in me' clause. It orders an across-the-board freeze and leaves implementation and exceptions to OMB.

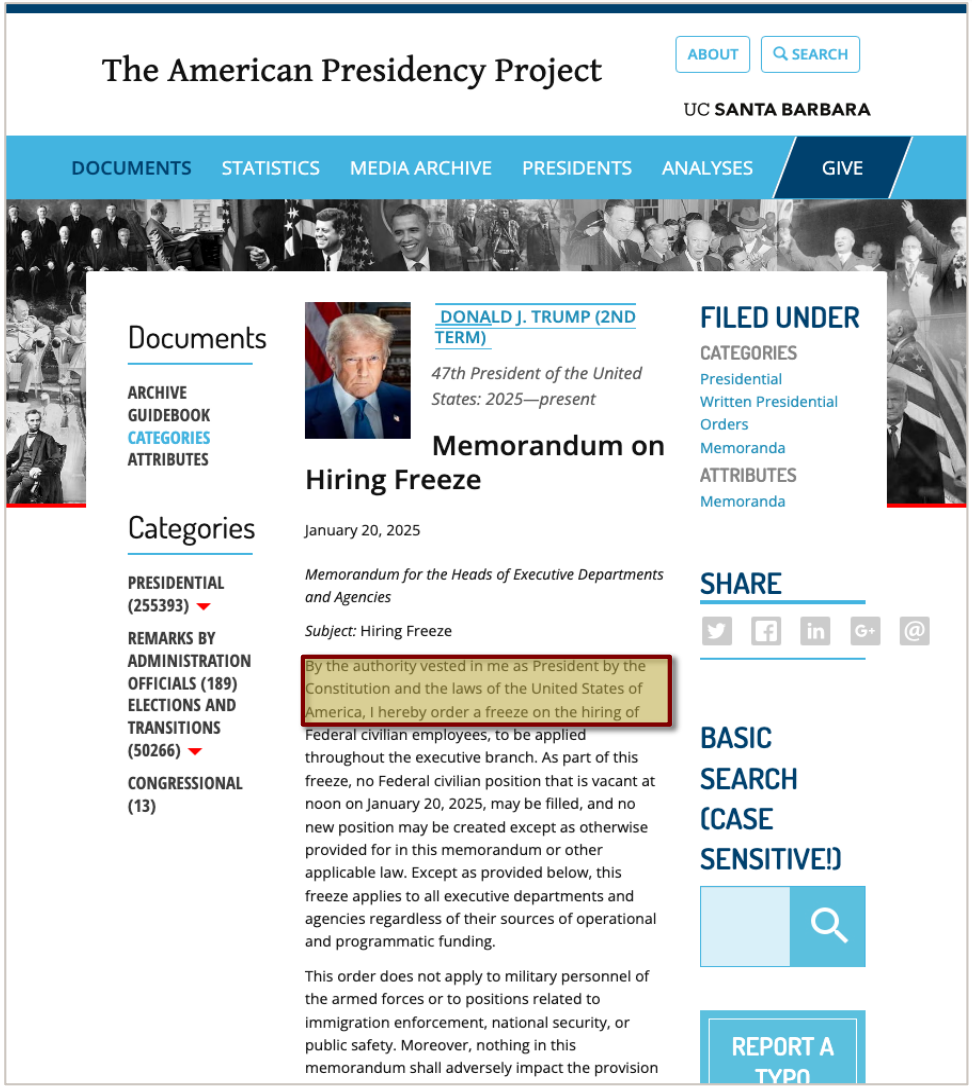
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Source: Reagan, Memorandum Directing a Federal Employee Hiring Freeze (Jan. 20, 1981). Screenshot: The American Presidency Project; emphasis added.

Federal hiring freeze: Trump memorandum (2025)

A generic constitutional-and-laws vesting clause



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DONALD J. TRUMP (2ND TERM)

47th President of the United States: 2025—present

Memorandum on Hiring Freeze

January 20, 2025

Memorandum for the Heads of Executive Departments and Agencies

Subject: Hiring Freeze

By the authority vested in me as President by the Constitution and the laws of the United States of America, I hereby order a freeze on the hiring of Federal civilian employees, to be applied throughout the executive branch. As part of this freeze, no Federal civilian position that is vacant at noon on January 20, 2025, may be filled, and no new position may be created except as otherwise provided for in this memorandum or other applicable law. Except as provided below, this freeze applies to all executive departments and agencies regardless of their sources of operational and programmatic funding.

This order does not apply to military personnel of the armed forces or to positions related to immigration enforcement, national security, or public safety. Moreover, nothing in this memorandum shall adversely impact the provision

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BASIC SEARCH (CASE SENSITIVE!)

REPORT A TYPO

GENERIC VESTING CLAUSE

"By the authority vested in me as President by the Constitution and the laws of the United States of America …"

HOW CLOSE IS THE ANALOGY?

No statute is named. The same opening sentence orders an immediate freeze on vacant and newly created Federal civilian positions, subject to stated exceptions.

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Source: Trump, Memorandum on Hiring Freeze (Jan. 20, 2025). Screenshot: The American Presidency Project; emphasis added.

Federal position reductions: Clinton EO 12839 (1993)

A closely related personnel constraint with three specific statutory citations



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WILLIAM J. CLINTON

42nd President of the United States: 1993 - 2001

Executive Order 12839— Reduction of 100,000 Federal Positions

February 10, 1993

By the authority vested in me as President by the Constitution and the laws of the United States of America, including section 301 of title 3, United States Code, section 3301 of title 5, United States Code, and section 1111 of title 31, United States Code, it is hereby ordered as follows:

Section 1. Limits on Hiring Civilian Personnel. Each executive department or agency with over 100 employees shall eliminate not less than 4 percent of its civilian personnel positions (measured on a full-time equivalent (FTE) basis) over the next 3 fiscal years. The positions shall be vacated through attrition or early out programs established at the discretion of the department and agency heads. At least 10 percent of the reductions shall come from the Senior Executive Service, GS–15 and GS–14 levels or equivalent.

Sec. 2. Coverage. This order applies to all executive branch departments and agencies with over 100 employees (measured on a FTE basis)

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BASIC SEARCH (CASE SENSITIVE!)

REPORT A TYPO

SPECIFIC VESTING CLAUSE

"… including section 301 of title 3, United States Code, section 3301 of title 5, United States Code, and section 1111 of title 31, United States Code …"

HOW CLOSE IS THE ANALOGY?

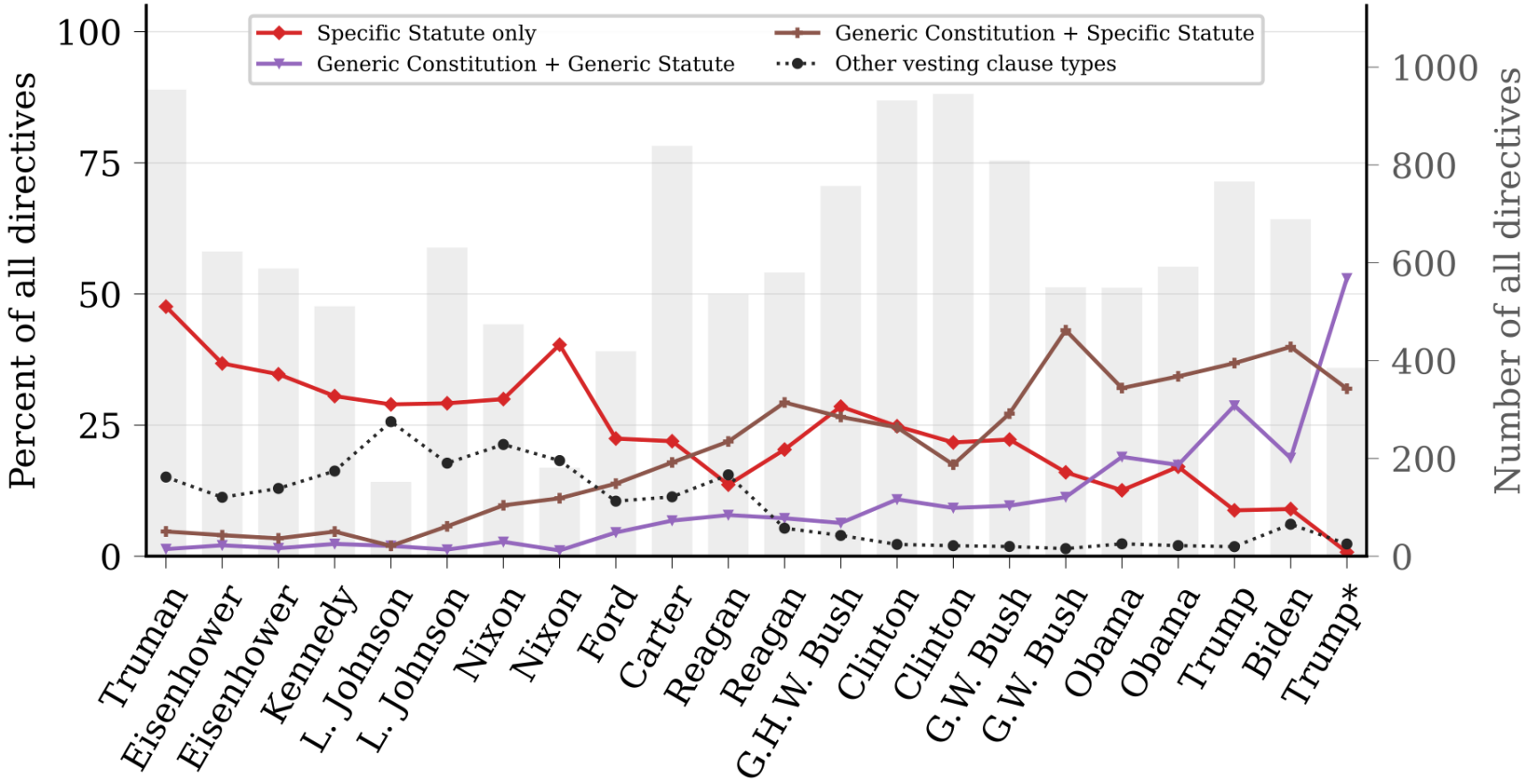
Functionally similar, but not identical: the order constrains hiring by requiring a 4% position reduction through attrition or early-out programs, rather than categorically barring every vacancy from being filled.

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Source: Clinton, Executive Order 12839 (Feb. 10, 1993). Screenshot: The American Presidency Project; emphasis added.

Vesting Clause Authority Type in All Directives



* Partial through Mar. 12, 2026

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Example of text re-use in high-confidence category

PARENT

Proclamation 7996

March 31, 2006

(1) In order to provide generally for the preferential tariff treatment being accorded under the Agreement to Honduras and Nicaragua, **to provide certain other treatment to originating goods for the purposes of the Agreement, to provide tariff-rate quotas with respect to certain goods, to reflect the removal of** Honduras and Nicaragua **from the enumeration of designated beneficiary developing countries for purposes of the GSP, to reflect the removal of** Honduras and Nicaragua **from the enumeration of designated beneficiary countries for purposes of the CBERA and the CBTPA, and to make technical and conforming changes in the general notes to the HTS, the HTS is modified as set forth in Annex** I **of Publication** 3845 **of the United States International Trade Commission, entitled Modifications to the Harmonized Tariff Schedule of the United States to Implement the Dominican Republic-Central America-United States Free Trade Agreement With Respect to** Honduras and Nicaragua **(Publication** 3845**), which is incorporated by reference into this proclamation.**

CHILD

Proclamation 8034

June 30, 2006

(1) In order to provide generally for the preferential tariff treatment being accorded under the Agreement to Guatemala, **to provide certain other treatment to originating goods for the purposes of the Agreement, to provide tariff-rate quotas with respect to certain goods, to reflect the removal of** Guatemala **from the enumeration of designated beneficiary developing countries for purposes of the GSP, to reflect the removal of** Guatemala **from the enumeration of designated beneficiary countries for purposes of the CBERA and the CBTPA,** to implement statistical monitoring relating to tariff provisions that the President previously proclaimed to implement the Agreement, **and to make technical and conforming changes in the general notes to the HTS, the HTS is modified as set forth in** the **Annex of Publication** 3861 **of the United States International Trade Commission, entitled "Modifications to the Harmonized Tariff Schedule of the United States to Implement the Dominican Republic-Central America-United States Free Trade Agreement With Respect to** Guatemala**" (Publication** 3861**), which is incorporated by reference into this proclamation.**

0.802 normalized 5-word reuse • 0.99 parent-selection confidence

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Sources: Proclamation 7996 (Mar. 31, 2006) → Proclamation 8034 (June 30, 2006). Verbatim excerpts; vesting clauses excluded from matching.

A task-force template reused seven years later

EARLIER

Middle-Class Working Families

January 30, 2009

Section 1. Establishment

There is established within the Office of the Vice President, a White House Task Force on Middle-Class Working Families **(Task Force)** to **focus on** raising the living standards of middle-class working families in the United States of America. **The Vice President shall serve as Chair of the Task Force.**

(a) Membership

such other executive branch departments, agencies, or offices as the President may designate. A member of the Task Force may designate, to perform the Task Force functions of the member, any person who is a part of the member's department, agency, or office, and who is a full-time **officer or employee of the Federal Government. At the direction of the Chair, the Task Force may establish subgroups consisting exclusively of Task Force members or their designees under this section, as appropriate.**

(b) Administration

The Department of Labor **shall provide funding and administrative support for the Task Force to the extent permitted by law and within existing appropriations. The Vice President shall designate an Executive Director of the Task Force, who shall coordinate the work of the Task Force.**

LATER

Cancer Moonshot

January 28, 2016

Section 1. Establishment

There is established, within the Office of the Vice President, a White House Cancer Moonshot **Task Force (Task Force),** which will **focus on** making the most of Federal investments, targeted incentives, private sector efforts from industry and philanthropy, patient engagement initiatives, and other mechanisms to support cancer research and enable progress in treatment and care. **The Vice President shall serve as Chair of the Task Force.**

(a) Membership

such other executive branch departments, agencies, or offices as the President may designate. A member of the Task Force may designate, to perform the Task Force functions of the member, any person who is a part of the member's department, agency, or office, and who is a full time **officer or employee of the Federal Government. At the direction of the Chair, the Task Force may establish subgroups consisting exclusively of Task Force members or their designees under this section, as appropriate.**

(b) Administration

The NIH **shall provide funding and administrative support for the Task Force to the extent permitted by law and within existing appropriations. The Vice President shall designate an** officer or employee of the executive branch as the **Executive Director of the Task Force, who shall coordinate the work of the Task Force.**

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Sources: Obama, Middle-Class Working Families Task Force (2009) → Cancer Moonshot Task Force (2016). Verbatim excerpts.

Example of consequential action under boilerplate authority

Proclamation 9852 — Recognizing the Golan Heights as Part of the State of Israel

March 25, 2019

Now, Therefore, I, Donald J. Trump, President of the United States of America, **by virtue of the authority vested in me by the Constitution and the laws of the United States**, do hereby proclaim that, the United States recognizes that the Golan Heights are part of the State of Israel.



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Source: Proclamation 9852 (Mar. 25, 2019). Full operative paragraph reproduced verbatim.

Both orders amend the first sentence of Executive Order

GENERIC

Executive Order 13087

May 28, 1998

Authority clause (verbatim)

By the authority vested in me as President by the Constitution and the laws of the United States, and in order to provide for a uniform policy for the Federal Government to prohibit discrimination based on sexual orientation, it is hereby ordered that Executive Order 11478, as amended, is further amended as follows:

Operative text (verbatim)

Section 1. The first sentence of section 1 is amended by substituting "age, or sexual orientation" for "or age".

SPECIFIC

Executive Order 13672

July 21, 2014

Authority clause (verbatim)

By the authority vested in me as President by the Constitution and the laws of the United States of America, including 40 U.S.C. 121, and in order to provide for a uniform policy for the Federal Government to prohibit discrimination and take further steps to promote economy and efficiency in Federal Government procurement by prohibiting discrimination based on sexual orientation and gender identity, it is hereby ordered as follows:

Operative text (verbatim)

Section 1. Amending Executive Order 11478. The first sentence of section 1 of Executive Order 11478 of August 8, 1969, as amended, is revised by substituting "sexual orientation, gender identity" for "sexual orientation".

Sources: EO 13087 (May 28, 1998); EO 13672 (July 21, 2014). Verbatim excerpts.

Trade policy: generic authority versus statutory detail

GENERIC

TPP withdrawal memorandum

January 23, 2017

Authority clause (verbatim)

Based on these principles, and by the authority vested in me as President by the Constitution and the laws of the United States of America,

Operative text (verbatim)

I hereby direct you to withdraw the United States as a signatory to the Trans-Pacific Partnership (TPP), to permanently withdraw the United States from TPP negotiations, and to begin pursuing, wherever possible, bilateral trade negotiations to promote American industry, protect American workers, and raise American wages.

SPECIFIC

Proclamation 10053 — USMCA

June 29, 2020

Authority clause (verbatim)

Now, Therefore, I, Donald J. Trump, President of the United States of America, by virtue of the authority vested in me by the Constitution and the laws of the United States of America, including sections 103(c), 105(a), 207, 324, and 611(a) of the USMCA Implementation Act; section 1206(a) of the 1988 Act; … section 604 of the 1974 Act; and section 301 of title 3, United States Code, do hereby proclaim:

Operative text (verbatim)

(1) In order to provide generally for the preferential tariff treatment being accorded under the USMCA … the HTS is modified as set forth in Annex I of Publication 5060 of the United States International Trade Commission.

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Sources: TPP memorandum (Jan. 23, 2017); Proclamation 10053 (June 29, 2020). Verbatim excerpts; ellipses mark cropped continuation.

Federal-contractor COVID rules: specific and generic authority

GENERIC

Executive Order 14099

May 9, 2023

Authority clause (verbatim)

By the authority vested in me as President by the Constitution and the laws of the United States of America, it is hereby ordered as follows:

Operative text (verbatim)

Sec. 2. Revocation of Vaccination Requirements. Executive Order 14042 and Executive Order 14043 are revoked. Agency policies adopted to implement Executive Order 14042 or Executive Order 14043, to the extent such policies are premised on those orders, no longer may be enforced and shall be rescinded consistent with applicable law.

SPECIFIC

Executive Order 14042

September 9, 2021

Authority clause (verbatim)

By the authority vested in me as President by the Constitution and the laws of the United States of America, including the Federal Property and Administrative Services Act, 40 U.S.C. 101 et seq., and section 301 of title 3, United States Code, and in order to promote economy and efficiency in procurement by contracting with sources that provide adequate COVID-19 safeguards for their workforce, it is hereby ordered as follows:

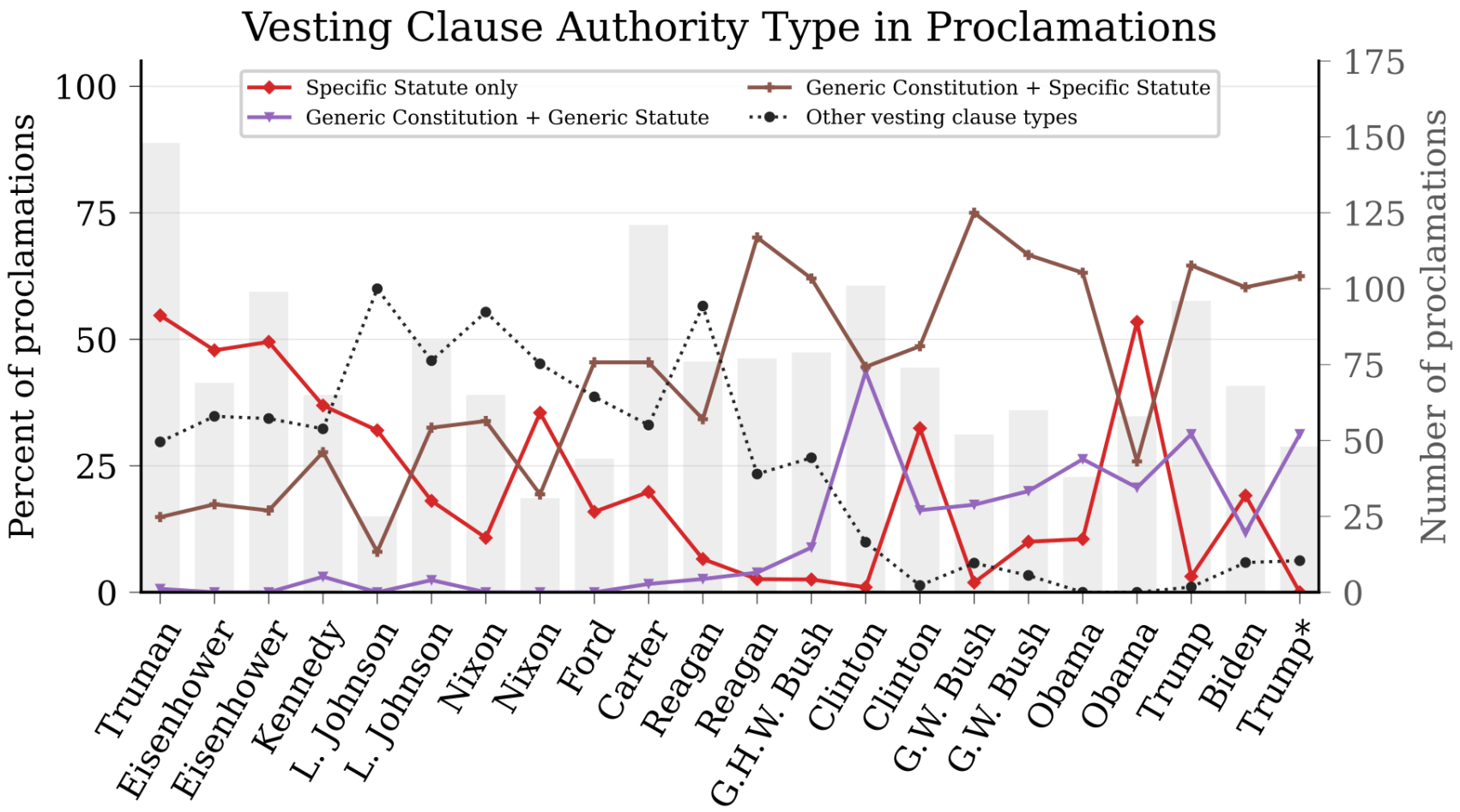
Operative text (verbatim)

Executive departments and agencies, including independent establishments subject to the Federal Property and Administrative Services Act, 40 U.S.C. 102(4)(A) (agencies), shall, to the extent permitted by law, ensure that contracts and contract-like instruments (as described in section 5(a) of this order) include a clause that the contractor and any subcontractors (at any tier) shall incorporate into lower-tier subcontracts.



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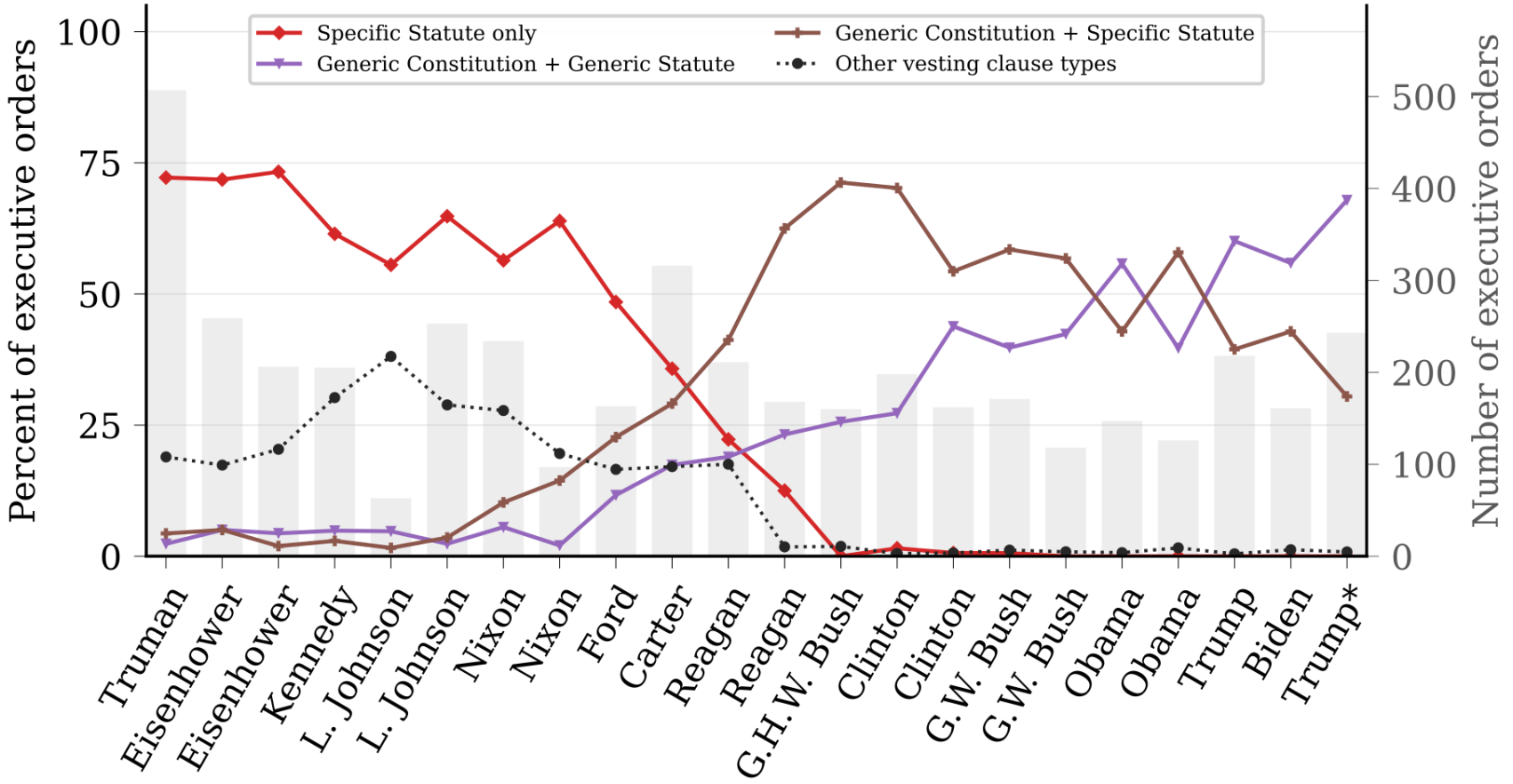
Sources: EO 14099 (2023); EO 14042 (2021). Verbatim excerpts.



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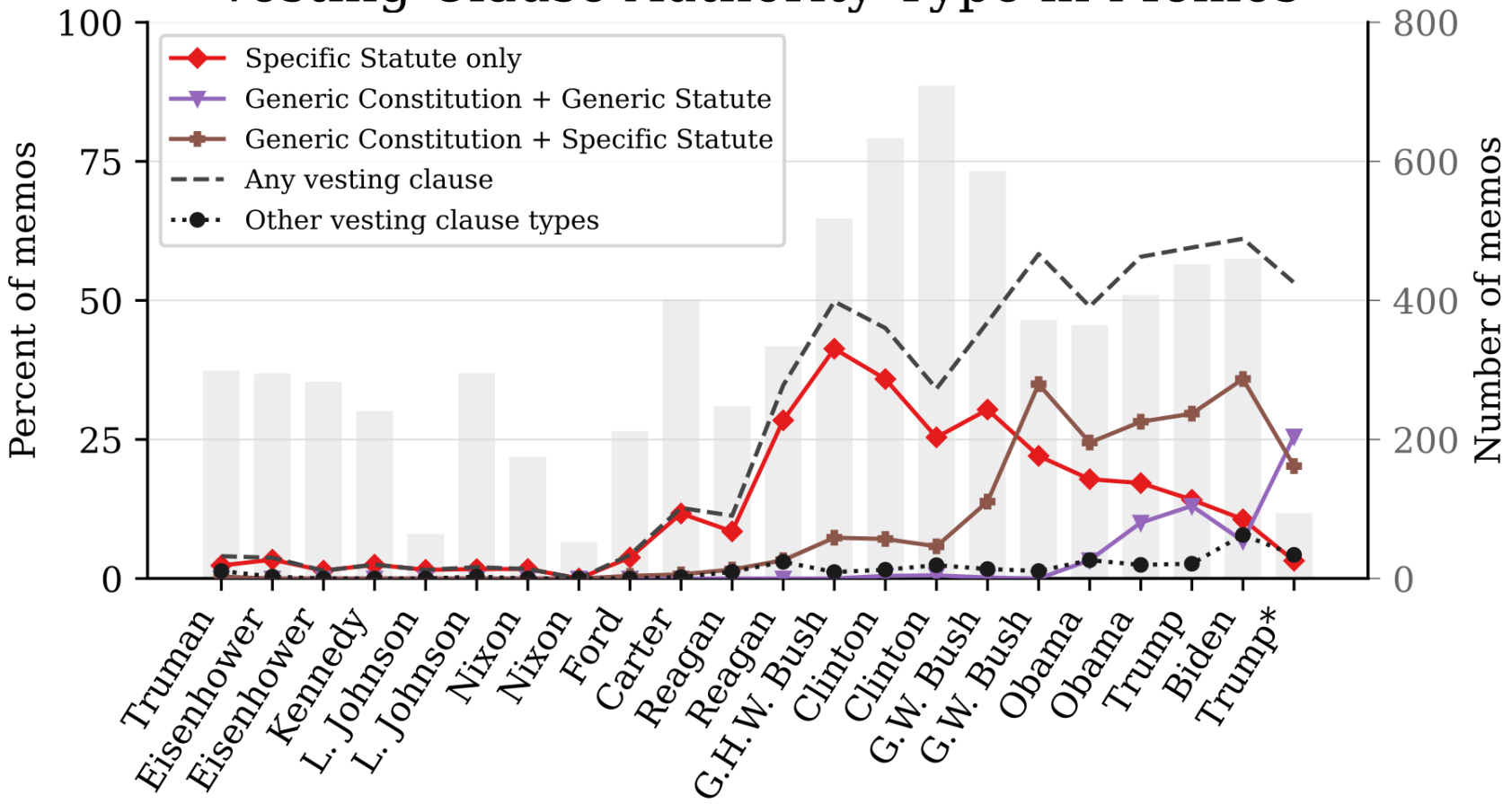
Vesting Clause Authority by Type in EOs



* Partial through Mar. 12, 2026

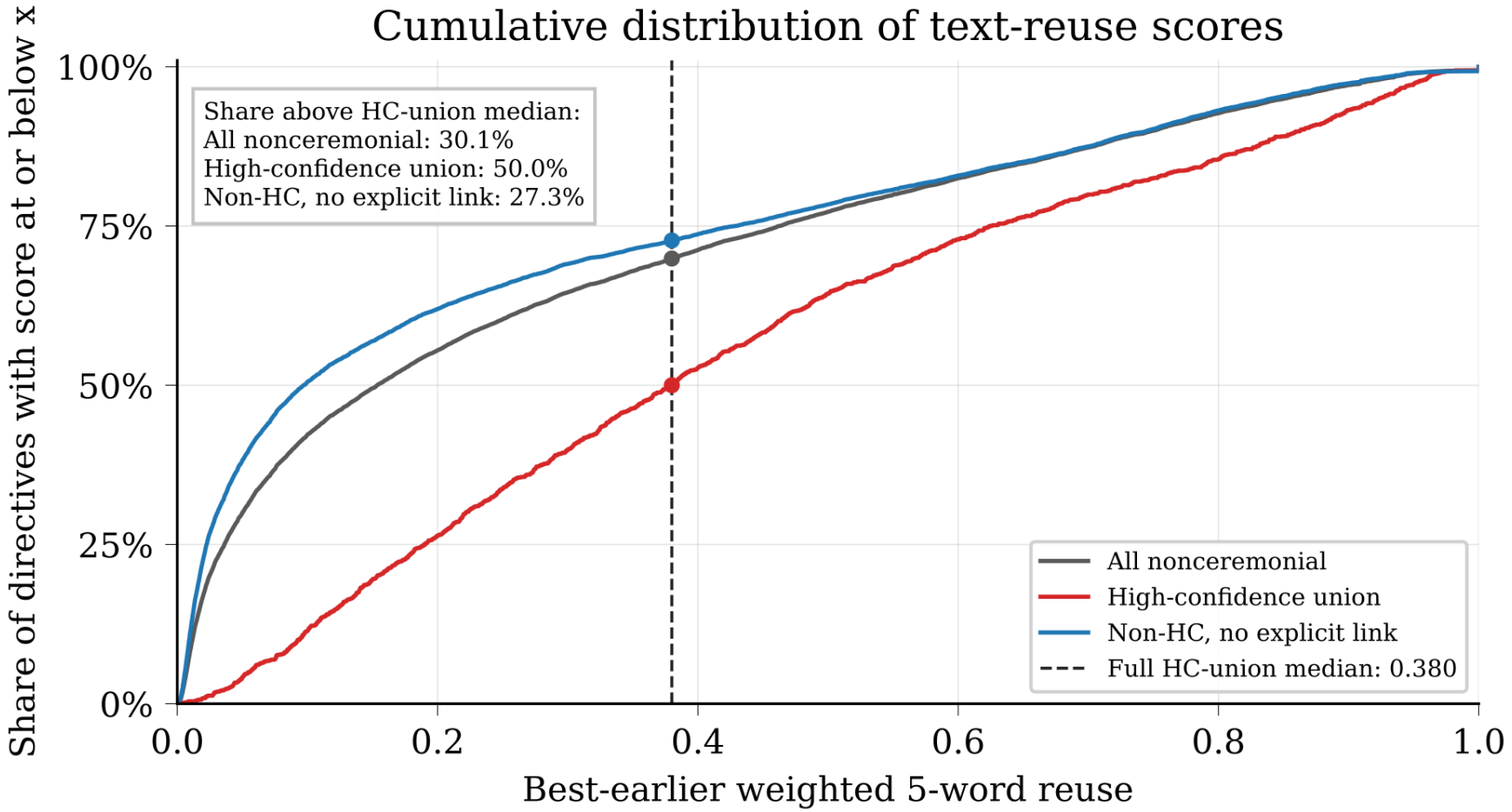
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Vesting Clause Authority Type in Memos



* "Memos" combines memoranda and letters; partial through Mar. 12, 2026

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Scores compare each directive with all strictly earlier eligible directives; same-day candidates are excluded.

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